

25SMCV02693 25SMCV02693

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-07

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Case Number: 25SMCV02693 Hearing Date: August 7, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

7, 2026

CASE NUMBER

25SMCV02693

MATTER

Request

for Default Judgment

This case arises from a dispute between homeowner and lender. On May 28, 2025, Plaintiff Fred Tucker, as trustee of the Zula Tucker Living Trust dated September 15, 2006 ("Plaintiff") brought suit against Defendant JP Morgan Chase Bank, N.A. ("Defendant") and Does 1-50, alleging five causes of action for (1) violation of TILA; (2) wrongful disclosure; (3) accounting; (4) breach of the implied covenant of good faith and fair dealing; and (5) fraud.

Defendant was personally served with a copy of the summons and complaint on June 18, 2025. Default was entered against Defendant on November 12, 2025, and the Doe Defendants were dismissed on August 5, 2026.

Defendant now seeks default judgment in the amount of \$903,009.88, comprised of compensatory damages in the amount of \$386,000; punitive damages in the amount of \$500,000; prejudgment interest in the amount of \$16,454.88; and costs in the amount of \$555.

A. Damages

Plaintiff's Complaint seeks only \$385,000 in general damages. (See Complaint at Prayer ¶ 1.) Yet, Plaintiff now seeks compensatory damages in the amount of \$386,000.

The Court cannot award damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].) Therefore, Plaintiff is limited to compensatory damages in the amount of \$385,000 as demanded in the Complaint.

Plaintiff advances his own declaration in support of the request, which provides as follows:

11. As a direct and proximate result of Defendant's conduct, I suffered substantial damages, including:

- a. Loss of the Property and all equity therein.
- b. Loss of use and possession of the Property.
- c. Loss of personal property wrongly taken or destroyed.
- d. Out-of-pocket expenses, including payments and fees wrongfully imposed.
- e. Emotional distress and mental suffering.

12. My compensatory damages total \$386,000.00. I am also entitled to prejudgment interest in the amount of \$16,454.88 and costs of suit totaling \$555.00.

(Tucker
Decl. ¶¶ 11-12.)

However, Plaintiff has not provided any documentation substantiating the damages requested. As such, the Court cannot yet enter judgment for any amount of damages.

B. Punitive Damages

To aid the Court in determining how much to award in punitive damages, a plaintiff must provide evidence of Defendant's financial condition. (Adams v. Murakami (1991) 54 Cal.3d 105, 119.) "[T]he purpose of punitive damages is not served by financially destroying a defendant. The purpose is to deter, not to destroy." (Id. at p. 112.) "[A] punitive damages award is excessive if it is disproportionate to the defendant's ability to pay." (Ibid., citations omitted.) For this reason, the United States Supreme Court has explained that there are constitutional limitations on punitive damages awards. (State Farm Mut. Auto. Ins. Co. v. Campbell (2003) 538 U.S. 408, 416.) "It has been recognized that punitive damages awards generally are not permitted to exceed 10 percent of the defendant's net worth." (Weeks v. Baker & McKenzie (1998) 63 Cal.App.4th 1128, 1166.)

Plaintiff has advanced two declarations in support of his request for punitive damages. In Plaintiff's declaration in support of his default request generally, Plaintiff indicates:

13.
Based on the malicious, oppressive, and fraudulent nature of Defendant's conduct, including exploiting my legal blindness and intentionally deceiving me about the nature of the loan, I request punitive damages in the amount of \$500,000.00.

(Tucker Decl. ¶ 13.) In a

separate declaration specifically addressing Plaintiff's request for punitive damages, Plaintiff indicates:

2.

Defendant's conduct was fraudulent, malicious, and oppressive. Defendant intentionally misrepresented the loan as a refinance when, in fact, it was a HELOC with materially different terms.

3.

Defendant knew or should have known that Plaintiff was legally blind and unable to read the loan documents. Instead of reading or explaining the documents to Plaintiff, Defendant physically placed Plaintiff hand on the signature lines and instructed Plaintiff to sign. (EXHIBIT A Page 7 of 9)

4.

Defendant's conduct was despicable and carried out with a willful and conscious disregard for Plaintiff rights. Defendant exploited Plaintiff disability to induce Plaintiff into a loan Plaintiff did not understand or agree to.

5.

Defendant's actions demonstrate malice, oppression, and fraud. Defendant's conduct was intentional, deceptive, and designed to cause financial harm and to wrongfully obtain my home.

6.

Punitive damages in the amount of \$500,000.00 are necessary to punish Defendant and deter similar misconduct.

(Tucker Decl. re: Punitive Damages
at ¶¶ 2-6.)

However,

Plaintiff has not submitted any evidence of the Defendant's financial condition. As such, the Court cannot award punitive damages.

C. Prejudgment Interest

Plaintiff

has not provided the Court with any calculation for the requested prejudgment

interest. As such, the Court cannot determine whether the principal amount used, the interest rate sought, or the time period adequately support the requested prejudgment interest.

Further, because prejudgment interest is premised upon a principal damages award, and Plaintiff has not yet substantiated a principal damages award, prejudgment interest is similarly inappropriate at this time.

D. Costs

Code of Civil Procedure

section 1033.5 outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032. The Code of Civil Procedure defines the “prevailing party” as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

Plaintiff also requests \$555 in costs, comprised of \$435 in filing fees and \$120 in process server fees.

(CIV-100.) Plaintiff’s request

for costs is granted, as Plaintiff is the prevailing party in this action. (Code Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

For the foregoing reasons, Plaintiff’s request for default judgment is denied without prejudice.

The Court

continues the OSC re Entry of Default Judgment to October 9, 2026. Plaintiff shall file an amended default judgment request in conformance with this ruling on or before October 2, 2026.

If Plaintiff declines

to waive notice, the Clerk of the Court shall provide notice of the Court's ruling.

DATED: August 7, 2026 _/s/ _____

Michael

E. Whitaker

Judge

of the Superior Court